

VALIDATOR AWARDS PROGRAM

TERMS AND CONDITIONS

1. THE PROMOTER

Radix Tokens Jersey Limited is the PROMOTER of the VALIDATOR AWARDS PROGRAM and solely responsible for the program's management and operation, and for the allocation of Awards.

The Radix ®Ledger utilises the Radix® token (**XRD**). The ledger represents a layer 1 decentralised finance (**DE-FI**) platform. As with all new technologies, its success will depend on engagement, recognition and adoption. The object of the program is to promote the use of the Radix Ledger

This Awards Program is a discretionary promotion which will make AWARDS to those whom the PROMOTER considers have by the operation of VALIDATOR NODES made meaningful contribution to the advancement of the RADIX® PROTOCOL and the adoption of the RADIX® LEDGER.

2. DEFINITIONS

In these TERMS AND CONDITIONS, the following words shall have the meanings set out below:

AFFILIATE	any person or business directly or indirectly under the control of, or controlled by, or under common control of any of the PARTIES or which has the ability to direct or cause the direction of the management and policies of a PARTY, whether by contract or otherwise.
AWARDS	non-redeemable RADIX XRD tokens which are distributed at the discretion of the PROMOTER to VALIDATORS.
CONSENSUS PROTOCOL	The RADIX PROTOCOL being the core code that forms underlying layer of software used by the RADIX LEDGER which establishes the rules that allow entities to communicate transmit and record information and data across the RADIX LEDGER to perform transactions and validate transactions.
PERSON	an incorporated or unincorporated undertaking having a legal personality which is capable of entering into binding legal obligations on behalf of itself and all participants therein; or a single living person over the age of 18 of full legal capacity.
RADIX LEDGER	a trust-less peer-to-peer network capable of determining the order of events within a distributed system, agnostic to its operating environment which creates and utilises the RADIX TOKEN (XRD).
RESTRICTED PERSON	Restricted Person shall mean any person, firm, company, partnership, trust, corporation, entity, Government, Government Official, or any other incorporated or unincorporated body or association, association or partnership (whether or not having separate legal personality): established domiciled, a citizen or resident

in a Restricted Territory; identified in Appendix 1 as a Restricted Person; in or subject to the jurisdiction of a Restricted Territory, or who is restricted by law or regulation from acquiring, holding, buying or selling of cryptographic tokens which may be designated by THE PROMOTER from time to time. any person or class of persons designated by THE PROMOTER (at its absolute discretion) including persons who are identified as resident, domiciled or carrying on business in High Risk Jurisdictions according to FATF2 and Transparency International 2018 Corruption Perceptions Index Rating 3 of less than 25, or which in the opinion of THE PROMOTER is otherwise not compliant with international standards for anti-money laundering, anti-terror financing or has been identified as having been subject to investigation for breach of any of similar regulations.

RESTRICTED TERRITORY

those territories set out at Appendix 1 together with any further territories which may be designated as subject to sanctions or other restrictions which prevent its nationals, citizens or residents from participating in the sale/purchase, holding, use or transmission of cryptographic tokens and/or which may be designated by THE PROMOTER from time to time

THIS AGREEMENT/THESE TERMS

where the context requires “this Agreement” and/or “these Terms” shall mean the terms binding between the parties relating to the VALIDATOR REWARDS PROGRAM as accepted by and binding upon the VALIDATOR.

VALIDATOR/YOU/YOUR

A Person who participates in the VALIDATOR AWARDS PROGRAM and continuously operates a VALIDATION NODE.

VALIDATION NODE

a computer that synchronizes with the RADIX LEDGER to store a record of transactions and is responsible for verifying, voting on, and maintaining a record of transactions underpinning the security and operation of the RADIX LEDGER.

3. PARTICIPATION

1.1 The following shall not be permitted to participate in the RADIX VALIDATOR REWARD PROGRAM:

Persons who are:

- (a) employees of the PROMOTER or its holding subsidiary or Affiliate companies.
- (b) employees of agents or suppliers of the PROMOTER or its Affiliate companies
- (c) those who are professionally connected with the operation of the VALIDATOR AWARDS PROGRAM;
- (d) members of the immediate families or households of (a) to (c) above; or
- (e) Restricted Persons pursuant to in or subject to the jurisdiction of a Restricted Territory

4. MAKING AWARDS

- 4.1 Awards made pursuant to this VALIDATOR AWARDS PROGRAM are entirely discretionary and recognise meaningful contribution which may be;
- (a) a single AWARD on the commencement of participation by a VALIDATOR
 - (b) the consistent and continuous and effective operation of a VALIDATION NODE.
- 4.2 Awards are made to a single Person or undertaking irrespective of how many VALIDATION NODES are owned, managed supervised or controlled by that Person (whether as principal or as agent nominee or pursuant to any formal or informal agreement or understanding with any third party).
- 4.3 AWARDS cannot be redeemed for cash or any cash alternative.
- 4.4 No purchase or financial contribution is required to be made by the VALIDATOR to or for the benefit of the PROMOTER.
- 4.5 **EXRD and XRD TOKENS may have no value and may not be exchangeable for cash or negotiable currency, YOU may be liable for tax on the receipt of such TOKENS which may be of insufficient negotiable value to meet such obligation.**

5. COMMENCEMENT AND DURATION

- 5.1 Your participation in the VALIDATOR AWARD PROGRAM shall commence when You have completed all compliance checks as are required by the PROMOTER and You have accepted to be bound by these TERMS AND CONDITIONS (these Terms).
- 5.2 Your participation in the VALIDATOR AWARDS PROGRAM shall continue, until terminated in accordance with Clause 10.
- 5.3 The parties agree that use of tick box acceptance and or electronic signatures shall be sufficient to constitute acceptance and evidence an intention to be bound.

6. VALIDATOR AWARDS

- 6.1 The PROMOTER may at its absolute discretion make Awards in the form of EXRD or XRD RADIX TOKENS distributed to VALIDATORS on a periodic basis, usually monthly.
- 6.2 The basis of such Awards, and the amount and apportionment of such Awards amongst all VALIDATORS who choose to participate in this AWARD PROGRAM is in the absolute discretion of the PROMOTER.
- 6.3 VALIDATOR AWARDS may be granted:
- (a) as a single block of EXRD or XRD TOKENS upon commencement of Your participation in the VALIDATOR AWARD PROGRAM.
- or
- (b) on a periodic basis (usually monthly) based on the PROMOTER'S evaluation of Your contribution to the successful operation of the RADIX PROTOCOL.
- 6.4 The PROMOTER may alter the basis of any award or vary or withhold any such Award in its absolute discretion.
- 6.5 On termination of participation in the VALIDATOR PROGRAM, and or Your participation in the VALIDATOR AWARDS PROGRAM, You may receive such AWARDS as have fallen due for delivery to You prior to such termination but not otherwise.

7. VALIDATOR WARRANTIES.

7.1 As a VALIDATOR You warrant, represent and undertake that:

- (a) You have full legal capacity to enter into and participate in this VALIDATOR PROGRAM;
 - (b) You are lawfully entitled to operate as a VALIDATOR in any jurisdiction where You are resident, have Your place of business, registered office or of which You are a citizen or national;
 - (c) (if a living person) You are 18 years of age or older of full legal capacity.
 - (d) You will provide the PROMOTER with identification to confirm Your age and Your legal identity;
 - (e) You do not have any unspent criminal convictions of any kind subsisting at the date of these Terms;
 - (f) You are not a RESTRICTED PERSON;
- and
- (g) As continuing warranty, You are not and have not been subject to any investigation, action, or inquiry relating to money laundering, terrorist financing, fraud or any offence involving dishonesty or financial wrongdoing.

7.2 You hereby agree to indemnify and hold safe the PROMOTER against all liabilities, costs, expenses, damages and losses (including but not limited to any direct, indirect or consequential losses, loss of profit, loss of reputation and all interest, penalties and legal costs and all other professional costs and expenses) suffered or incurred by the PROMOTER arising out of or in connection with any third-party claims or any action, adjudication or decision taken against the PROMOTER or its AFFILIATES by any enforcement agency, or regulatory body, or third-party directly or indirectly arising (in whole or in part) out of any breach of Clause 7.1.

8. TAX

- 8.1 All AWARDS shall be deemed to be exclusive of any VAT or similar taxes if deemed to be payable.
- 8.2 The PROMOTER may if required by any law or regulation retain or withhold all or part of any AWARD in respect of any tax, duty, levy or similar obligation. In the event of such withholding THE PROMOTER will provide evidence of such and reasonable assistance and provision of documents at your expense to enable You to receive the benefit of any dual tax relief relevant to such withholding.
- 8.3 You may be obliged to declare AWARDS in accordance with Your local tax regulations and to pay any tax, duties or other fees in relation to the receipt of such AWARDS You agreed to indemnify and hold safe THE PROMOTER in relation to all costs, taxes, duties and fees which may become due in relation to the provision of any AWARD to You.

9. LIMITATION OF LIABILITY AND INDEMNITY

- 9.1 References to liability in this Clause 9 include every kind of liability arising under or in connection with the operation of the VALIDATOR AWARD PROGRAM including but not limited to liability in contract, tort (including negligence), misrepresentation, restitution or otherwise.
- 9.2 Nothing in these Terms shall limit any liability under Clause 7.2 (VALIDATOR'S indemnity).

9.3 Nothing in these Terms limits any liability which cannot legally be limited, including but not limited to liability for:

- (a) death or personal injury caused by negligence;
- (b) fraud or fraudulent misrepresentation; and
- (c) breach of the terms implied by section 12 of the Sale of Goods Act 1979 or section 2 of the Supply of Goods and Services Act 1982 (title and quiet possession).

9.4 Subject to clause 9.2

- (a) each party's total liability to the other shall not exceed £500.00 (Five Hundred Pounds Sterling)
- (b) neither party shall have any liability to the other for:
 - (i) loss of profits;
 - (ii) loss of sales or business;
 - (iii) loss of agreements or contracts;
 - (iv) loss of anticipated savings;
 - (v) loss of use or corruption of software, data or information;
 - (vi) loss of or damage to goodwill; or
 - (vii) indirect or consequential loss.

10. TERMINATION

10.1 THE PROMOTER may, at its sole discretion, exclude You from participating in this or any other RADIX AWARDS PROGRAM at any time.

10.2 The PROMOTER reserves the right to hold void, suspend, cancel, or amend the RADIX VALIDATOR PROGRAM at any time.

10.3 On termination:

- (a) neither party shall have any further obligation to the other pursuant to these terms and any agreement incorporating these terms, except as provided herein; and
- (b) the parties shall retain all rights, remedies and obligations that have accrued or become due prior to termination.

11. ASSIGNMENT OR OTHER DEALING

The VALIDATOR shall not assign, transfer, mortgage, charge, subcontract, declare a trust over or deal in any other manner with any rights obligations or benefits arising out of participation in the RADIX VALIDATOR PROGRAM.

12. NO PARTNERSHIP OR AGENCY

12.1 Nothing in these Terms is intended to, or shall be deemed to, establish any partnership or joint venture between the parties, constitute either party the agent of the other party, or authorise either party to make or enter into any commitments for or on behalf of the other party.

12.2 The VALIDATOR shall not provide any services to the PROMOTER and the PROMOTER does not engage the VALIDATOR to do so.

12.3 Each party that has rights under these Terms is acting on its own behalf and not for the benefit of any other person.

13. NOTICES

- 13.1 Any notice or other communication given to a party pursuant to these Terms shall be in writing and shall be:
- (a) delivered by hand or by pre-paid first-class post or other next working day delivery service at its registered office (if a company) or its principal place of business (in any other case);
 - or
 - (b) sent by email to such email address as each party shall notify to the other in writing from time to time.
- 13.2 Any notice given to You under Clause 13.1 by email shall be deemed to have been received when THE PROMOTER receives a "read receipt" notification that the notice email has been opened or, if no read receipt is requested, six hours after the notice is sent.
- 13.3 Any other notice or communication sent under these Terms shall be deemed to have been received:
- (a) if delivered by hand, at the time the notice is left at the proper address;
 - (b) if sent by pre-paid first-class post or other next working day delivery service, at 9.00 am on the second Business Day after posting;
- 13.4 This Clause does not apply to the service of any proceedings or other documents in any legal action or, where applicable, any arbitration or other method of dispute resolution.

14. ENTIRE AGREEMENT

- 14.1 These Terms constitute the entire agreement between the parties and supersede and extinguish all previous agreements, promises, assurances, warranties, representations and understandings between them, whether written or oral, relating to its subject matter.
- 14.2 Each party agrees that it shall have no remedies in respect of any statement, representation, assurance or warranty (whether made innocently or negligently) that is not set out in these Terms. Each party agrees that it shall have no claim for innocent or negligent misrepresentation or negligent misstatement.

15. VARIATION

No variation of these Terms shall be effective unless it is in writing and signed by the parties (or their authorised representatives).

16. REMEDIES

You acknowledge that in the event of any breach of any of the terms of these Terms by THE PROMOTER, Your sole remedy will be an action at law for damages and in no event will You be entitled to rescind these Terms or receive any injunctive or other equitable relief which may affect THE PROMOTER's ability to continue to operate the RADIX AWARDS PROGRAM.

17. DATA PROTECTION

Each party shall, at its own expense, ensure that it complies with and assists the other party to comply with the requirements of all legislation and regulatory requirements in force from time to time relating to the use of personal data, including (without limitation) any data protection legislation from time to time affecting the parties or in force in the UK including the Data Protection Act 2018 and the General Data Protection Regulation ((EU) 2016/679) as retained in

UK law. This Clause is in addition to, and does not reduce, remove or replace, a party's obligations arising from such requirements.

17.1 The PROMOTER will collect and process information relating to You in accordance with the privacy notice which is found at <https://www.radixdlt.com/privacy-policy>

18. ANTI-BRIBERY

18.1 You shall:

- (a) comply with all applicable laws, statutes and regulations relating to anti-bribery and anti-corruption including but not limited to the Bribery Act 2010 (Relevant Requirements);
- (b) not engage in any activity, practice or conduct which would constitute an offence under sections 1, 2 or 6 of the Bribery Act 2010 if such activity, practice or conduct had been carried out in the UK;
- (c) comply with such policies relating to ethics, anti-bribery and anti-corruption as THE PROMOTER may provide to You and update from time to time; and
- (d) promptly report to THE PROMOTER any request or demand for any undue financial or other advantage of any kind received by You in connection with the performance of these Terms.

18.2 Breach of this Clause 18 shall be deemed a material breach of these Terms.

19. WAIVER

No failure or delay by a party to exercise any right or remedy in relation to these Terms or by law shall constitute a waiver of that or any other right or remedy, nor shall it prevent or restrict the further exercise of that or any other right or remedy. No single or partial exercise of such right or remedy shall prevent or restrict the further exercise of that or any other right or remedy.

20. THIRD PARTY RIGHTS

No one other than the Parties shall have any right to enforce any of these Terms.

21. CONFIDENTIALITY

21.1 You undertake that You shall not at any time during the participation in the VALIDATOR'S AWARDS PROGRAM, and for a period of three years after termination of these Terms, disclose to any person any confidential information concerning the business affairs, customers, clients or suppliers of THE PROMOTER, or of any member of the group of companies to which THE PROMOTER belongs, including in particular new business or product ideas, lines and prototypes except as expressly permitted in this Clause.

21.2 THE PROMOTER undertakes that it shall not at any time disclose to any person any confidential information concerning You, Your business affairs, personal matters and relationships and those of Your immediate family.

21.3 Each party may disclose the other party's confidential information:

- (a) to its employees, officers, representatives or advisers who need to know such information for the purposes of exercising the party's rights or carrying out its obligations under or in connection with these Terms. Each party shall ensure that its employees, officers, representatives or advisers to whom it discloses the other party's confidential information comply with this Clause 21; and

- (b) as may be required by law, to a court of competent jurisdiction or any governmental or regulatory authority.

21.4 Neither party shall use any other party's confidential information for any purpose other than to exercise its rights and perform its obligations under or in connection with these Terms.

22. GOVERNING LAW

22.1 These Terms and any dispute or claim (including non-contractual disputes or claims) arising out of or in connection with it or its subject matter or formation shall be governed by and construed in accordance with the law of England and Wales.

22.2 Each party irrevocably agrees that the courts of England and Wales shall have exclusive jurisdiction to settle any dispute or claim (including non-contractual disputes or claims) arising out of or in connection with these Terms or its subject matter or formation.

22.3 The provision of services shall be deemed to have occurred in England and all debts obligation are to be formed in England which shall be the situs for all debts, causes of action, and the ownership of all property relating hereto.

22.4 The VALIDATOR shall not oppose the registration, recognition or enforcement of any judgement or order in any territory.

22.5 All conflict of law provisions shall be excluded.

APPENDIX 1. RESTRICTED TERRITORIES & PERSONS

PART A – RESTRICTED TERRITORIES

Afghanistan	Libya
Angola	Madagascar
Azerbaijan	Mozambique
Bahamas	Nicaragua
Bosnia Herzegovina	North Korea
Botswana	Pakistan
Burundi	People's Republic of China
Cambodia	Serbia
Cameroon	Somalia
Canada	South Sudan
Chad	Sri Lanka
Congo	Sudan
Crimea Region of Ukraine	Syria
Cuba	Tajikistan
Democratic Republic of Congo	Trinidad and Tobago
Eritrea	Tunisia
Ethiopia	Turkmenistan
Ghana	Uganda
Guinea	Uzbekistan
Guinea-Bissau	Vanuatu
Haiti	Venezuela
Iran	Yemen
Iraq	Zimbabwe
Laos	